

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 22-31

TPG PRESSURE, INC.,
COMPLAINANT

v.

OMNI LOGISTICS LLC ET AL.,
RESPONDENTS.

**COMPLAINANT’S AND RESPONDENTS’ JOINT PETITION
TO MODIFY THE SCHEDULING ORDER AND EXTEND THE
DATE BY WHICH THE INITIAL DECISION WILL BE ISSUED**

Pursuant to 46 C.F.R. §§ 502.61(d) and 502.69(a), Complainant TPG Pressure, Inc. (“Complainant”) and Respondents Omni Logistics, LLC and Epic Freight Solutions LLC (collectively, “Respondents”) (Complainant and Respondents are also referred to individually as a “Party” and collectively as the “Parties”), through the Parties’ respective undersigned counsel, hereby jointly respectfully request that Presiding Officer extended all current deadlines in the Scheduling Order, filed on May 12, 2023, by just under two (2) months and, as a correlative result, request that the Commission extend the date by which an initial decision must be reached until January 24, 2024.

In support of this Petition, as set forth below, the Parties state that good cause exists for this petition because, among other things: (1) the pleadings in this case did not close until May 3, 2023, leaving only a six-month period for the Parties to complete fact and expert discovery, including depositions, and to submit their written briefs in time for the Presiding Officer to render her initial decision by November 29, 2023; (2) the parties have diligently engaged in discovery;

(3) the Parties continue to face a significant challenge due to document production complications and scheduling conflicts that make it impossible as a practical matter to complete depositions by the current deadline; and (4) the Parties seek only a modest and reasonable extension of the Scheduling Order and the time for initial decision in light of the various issues presented in the case, the volume of documents produced, and the amount in controversy. While the Parties understand and appreciate the Presiding Officer’s admonition that a “scheduling order is not a frivolous piece of paper, idly entered, which can be cavalierly disregarded by counsel without peril,” the Parties submit that they have not cavalierly disregarded the Presiding Officer’s Scheduling Order. The Parties’ Petition is supported by very good cause.

I. Background

A. The Pleadings and Early Motion Practice: The Pleadings in this Matter did not Close until May 3, 2023.

Complainant filed its original Verified Complaint in this matter on November 29, 2022. Because Respondent Omni’s response to Complainant’s Verified Complaint would have been due on December 26, 2022—the day after the Christmas holiday—Respondent Omni sought, and obtained, additional time to respond to the Verified Complaint until January 17, 2023.

Then, due to an unexpected emergency hospitalization of Respondent’s counsel on January 12, 2023, Respondent Omni sought and obtained additional time to respond to the Verified Complaint until January 24, 2023.

Respondent Omni responded to the verified Complaint by motion on January 24, 2023. Complainant filed a response to Omni’s motion on February 9, 2023, opposing Omni’s motion and also seeking leave to amend the Verified Complaint to add an additional respondent—Epic. Omni filed a reply in support of its motion on February 17, 2023, and did not oppose Complainant’s motion for leave to amend its Verified Complaint.

On February 24, 2023, the Presiding Officer served her Order on Complainant's Motion to Amend Complaint and Motion to Dismiss, granting Complainant leave to amend its Verified Complaint and denying Omni's Motion to Dismiss. Complainant filed its First Amended Verified Complaint on February 27, 2023.

Respondents filed a Partial Motion to Dismiss Complainant's First Amended Verified Complaint on March 24, 2023. Complainant filed its response on April 7, 2023, and Respondents filed their Reply in support of their Partial Motion to Dismiss on April 14, 2023. On April 25, 2023, the Presiding Officer filed her Order Denying Complainant's Motion to Dismiss the Amended Complaint.

Respondents filed their Answer and Affirmative Defenses to the First Amended Verified Complaint on May 2, 2023. The Parties filed a Joint Status Report and Proposed Schedule on May 9, 2023, and the Presiding Order issued the currently operative Scheduling Order on May 12, 2023.

Thus, while Complainant's original Verified Complaint was filed on November 29, 2022, and the time for initial decision was accordingly set for November 29, 2023, the Parties could not begin discovery in earnest until the pleadings closed on May 3, 2023, since the claims at issue and the parties to the case have substantially changed since the commencement of this action.

B. The Parties have Diligently Engaged in Written Discovery and Document Production.

Complainant issued its first Interrogatories, Requests for Production, and Requests for Admission on May 16, 2023. Respondents issued their first Interrogatories, Requests for Production, and Requests for Admission on May 22, 2023. The Parties timely responded and objected to each other's written discovery requests, with the understanding that each Party's document production would be substantially complete by June 30, 2023, as required by the Presiding Officer's Scheduling Order.

After Complainant requested a 7-day extension to make its initial production of documents, the Parties each produced their initial production on July 7, 2023. Each Party then made a subsequent production the following week. Respondents produced over 10,589 documents, totaling 60,376 pages. Complainant has produced 5,805 documents to date, totaling 45,459 pages.

Respondents requested that Complainant redo the production in a different format to facilitate the review, which Complaint agreed to do. This delayed the document review process for Respondents until an actual review could finally begin on July 14, 2023. Respondents have further requested that Complainant produce additional responsive documents pertaining to the dispute. After the Parties met and conferred about this request on July 26, 2023, which resulted in narrowing down Respondents' discovery requests, Complainant agreed to search for and produce additional responsive documents. Despite the narrowing of Respondents' requests, Complainant expects that the additional production will require review of thousands of pages of documents.

The current deadline to complete depositions of fact witnesses is approaching quickly on August 4, 2023. Despite their best efforts, the Parties are unable to adequately identify witnesses and prepare for depositions primarily because not all documents have been produced and reviewed.

C. Counsel for the Parties Require Additional Time in Order to Complete Discovery.

Despite the diligence and best efforts of the Parties and their counsel, they are unable to adequately develop facts of the case, which would require review of tens of thousands of pages of documents, identification of deposition witnesses, preparation witnesses, and taking depositions by August 4. That deadline is simply untenable in light of the incomplete document production, the volume of documents already produced, and other obligations of the Parties and their counsel. Even if the parties *were* able to be prepared for depositions before August 4, 2023, the Parties would be unable to schedule the depositions because of the press of other business and other

scheduling conflicts of counsel and the Parties. Moreover, the Parties are unable to commence (let alone complete) expert discovery until the completion of fact discovery. The Parties met and conferred on July 26, 2023 to review all options and possibilities but concluded that, by virtue of the foregoing, an extension is absolutely necessary.

II. Argument.

The Commission may extend the date by which the initial decision and the final Commission decision will be issued “for good cause shown.” 46 C.F.R. § 502.61(d). Commission precedent supports allowing sufficient time for a full development of the evidentiary record even if that relaxes adherence to a particular schedule. *See Hudson Shipping (Hong Kong) Ltd. d/b/a Hudson Express Lines – Possible Violations of Section 10(a)(1) of the Shipping Act of 1984*, 29 S.R.R. 1376, 1377 (ALJ 2002) (The policy and responsibility of Commission is to ensure that justice is served and all relevant facts are considered by the Commission).

In light of the difficulties identified above, for good cause, the Parties seek a reasonable and modest extension of less than two (2) months. The Parties propose that the time for initial decision be extended from November 29, 2023 until January 24, 2024. The Parties further propose that the remaining dates in the Scheduling Order be amended as follows:

<u>Remaining Deadlines</u>	<u>Current Date</u>	<u>Proposed New Date</u>
Complete depositions of fact witnesses.	August 4, 2023	September 29, 2023
Disclosure of Complainant’s expert reports.	August 11, 2023	October 6, 2023
Last day to serve written discovery requests.	August 30, 2023	October 25, 2023
Disclosure of Respondents’ rebuttal expert reports.	September 1, 2023	October 27, 2023
Complete expert depositions.	September 29, 2023	November 17, 2023
Close of all discovery.	September 29, 2023	November 17, 2023

Complainant's brief, proposed findings of fact, and appendix.	October 6, 2023	December 8, 2023
Respondents' opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix.	October 27, 2023	December 29, 2023
Complainant's reply brief and responses to proposed findings of fact.	November 3, 2023	January 12, 2024

The Parties submit that these new proposed dates are reasonable under the circumstances. Counsel have begun consulting on dates to take depositions of lay witness in September, and the Parties are exploring more specific deposition topics.

III. Conclusion.

For the reasons identified in this Petition, the Parties respectfully request that the Commission extend the time for initial decision in this matter until January 24, 2024, and extend the other remaining dates on the Scheduling Order by just under two (2) months as requested herein. The Parties' request is supported by good cause because the substantial volume of documents that have been produced, the remaining documents that have not been produced, and the difficulty in preparing for and scheduling multiple depositions within the next week—by August 4—make meeting such a deadline practically impossible.

Dated: August 1, 2023

Respectfully submitted,

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CERTIFICATE OF SERVICE

I certify that on August 1, 2023, a true and correct copy of the foregoing document was served by email on all counsel of record in accordance with 46 CFR Part 502 and the Commission's Initial Order of December 6, 2022, as follows:

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